

Bihar Electricity Regulatory Commission (Annual Report) Rules, 2012

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[No. iz02@vk0ys0&14@11&02 - In exercise of the powers conferred by sub-section \(1\) and clause \(i\) of sub-section \(2\) of section 180 read with sub-section \(1\) of section 105 of the Electricity Act, 2003 and all other powers enabling in this behalf, the Government of Bihar hereby makes the following rules, namely :](#)

[Part-I 1. Short Title and Commencement.](#)

[\(1\) These rules may be called the Bihar Electricity Regulatory Commission \(Annual Report\) Rules, 2012.](#)

[\(2\) It shall Come into force from the date of its publication in the official gazette.](#)

[2.](#)

[Definitions.](#)

(1)

In these rules, unless the context otherwise requires :-

(a)

"Act" Means the Electricity Act, 2003.

(b)

"Commission" means the Bihar Electricity Regulatory Commissions;

(c)

"State Government" means the Government of Bihar.

(d)

"Annual Report" means the Annual Report containing summary of activities undertaken by the Commission in a financial year referred to in sub-section (1) of section 105 of the Act; and

(e)

"Appendix" means as appendix to these rules .

(2)

All other words and expressions, used in these rules and not defined, but defined in the Act shall have the meanings respectively assigned to them in the Act.

Part-II 3. Form of Annual Report.

- The Annual Report shall contain summary of the activities undertaken by the Commission during a financial year and any related matters as may be deemed appropriate by the Commission to incorporate in the form with Appendix appended to these rules and summary of annual accounts in Schedule.

4.

Period for preparation and forwarding the Annual Report .

- The Commission shall prepare in Hindi and in English Annual Report of it's activities during the previous financial year in appendix of these Rules and forward it to the State Government within the month of December each year.

5.

Laying of Annual Report.

- The State Government shall cause to be laid copy of the Annual Report before the State Legislature after it is received under Rule 4 of these Rules.

6.

Publication of Annual Report.

- The Commission may make available the Annual Report to the general public by sale or such other manner as it may deem appropriate after it is laid before the State Legislature.

7.

Removal of difficulties and interpretation.

- If any difficulty arises in giving effect to any provision of these Rules, the State Government may, by order, make such provisions not inconsistent with the provisions of the Act and these Rules, for removing the difficulty and in case of any doubt regarding interpretation of these rules, the same shall be referred to the State Government whose decision shall be final.

8.

Rules to be laid before Legislature.

- These Rules shall be laid, as soon as may be after it is made, before the Houses of the Legislature while it is in session for a total period of fourteen days. This period may be comprised in one session, or in two or more successive sessions. If, before the expiry of the session immediately following the session or the successive session aforesaid, the Houses agree in making any modifications in the Rules of the Houses agree that it should be passed as it is or the Houses agree that these Rules should not be made, these Rules shall, thereafter have effect only in such modified form or be deemed to be passed as it is by the Houses or be of no effect.

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